J. CHIGWEDERE,
National Commercial Employers Association of Zimbabwe.

G. M. CHIBAYA,
General Secretary–National Employment Council for the Commercial Sectors of Zimbabwe.

ADVOCATE M. MTOMBENI,
Council–National Employment Council for the Commercial Sectors of Zimbabwe.

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IT is hereby notified that the Minister of Public Service, Labour and Social Welfare has, in terms of section 80 of the Labour Act [*Chapter 28:01*], published the Collective Bargaining Agreement set out in the Schedule, which was registered in terms of section 79 of the Labour Act [*Chapter 28:01*].

SCHEDULE

## NATIONAL EMPLOYMENT COUNCIL FOR THE COMMERCIAL SECTORS

## COLLECTIVE BARGAINING AGREEMENT: THE COMMERCIAL SECTORS OF ZIMBABWE

Made and entered into in accordance with the provisions of the Labour Relations Act, [*Chapter 28:01*]) between the National Commercial Employers' Association of Zimbabwe (hereinafter referred to as the employers or the employers organizations) of the one part and the Commercial Workers' Union of Zimbabwe (hereinafter referred to as the employees or the trade union) of the other part being parties to the National Employment Council for the Commercial Sectors of Zimbabwe to lay down certain conditions of service in the Commercial Sectors of Zimbabwe. **(Incorporating Statutory Instrument 45/93 and all its amendments)**

ARRANGEMENT OF SECTIONS

*Section*

1. Title and period of operation.
2. Application.
3. Interpretation.
4. Grading and wages.
5. Ordinary hours of work.
6. Conversion of rates.
7. Payment of overtime.
8. Deductions.

*Section*

9. Payment of wages.
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11. Time and wage records.
12. Special provisions: Commission workers.
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14.A. Special provisions: Parade allowance: Private Security Occupation.
14.B. Special provisions: Cash –in transit allowance: Private Security Occupation.
15. Special provisions: Part-time airfield fuelling attendants.
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17. Outside work.
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19. Vacation leave.
20. Vacation leave: Special provisions: Part-time employees.
21. Industrial holidays.
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25. Continuous service.
26. Record of service.
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28. Special provisions: Uniforms, equipment and protective clothing Private security Occupation.
29. First-aid equipment.
30. Seating accommodation.
31. Gratuities on termination of employment.





Provided that paid maternity leave shall be granted only once during any period of twenty-four months calculated from the day any previous maternity leave was granted.

(4) Any maternity leave requested in excess of the limits prescribed in this section may be granted as unpaid maternity leave.

(5) Unless the employer grants sick leave for medical reasons other than maternity, sick leave may not be granted once paid maternity leave has began or during a period of unpaid maternity leave.

(6) During the period when a female employee is on maternity leave in accordance with this section, her normal benefits and entitlements, including her rights to seniority or advancement and the accumulation of pension rights, shall continue uninterrupted in the manner in which they would have continued had she not gone on such leave, and her period of service shall not be considered as having been interrupted, reduced or broken by the exercise of her right to maternity leave in terms of this Section.

(7) A female employee who is the mother of a suckling child shall, during each working day, be granted at her request at least one hour or two half-hour periods, as she may choose during normal working hours, for the purpose of nursing her child, and such employee may combine the portion or portions of time to which she is so entitled with any other normal breaks so as to constitute longer periods that she may find necessary or convenient for the purpose of nursing her child.

(8) Any person who contravenes this section shall be guilty of an unfair labour practice.

(9) Notwithstanding subsection (7) and (8), the grant of breaks during normal working time to a female employee for the purpose of nursing her child shall be made in accordance with all the exigencies of her employment and nothing done to prevent any disruption of normal production processes or any interference with the efficient running of an undertaking or industry shall be held to be in contravention of subsection (7).

(10) A female employee shall be entitled to the benefits under subsection (7) for the period during which she actually nurses her child or six months whichever is the lesser.

C. CHIKWEKWETE,
Commercial Workers Union of Zimbabwe.

| | |
|---|---|
| 26 | 31 |
| 27 | 32 |
| 28 | 33 |
| 29 | 34 |
| 30 | 35 |
| 31 | 36 |
| 32 | 37 |
| 33 | 38 |
| 34 | 39 |
| 35 | 40 |

FOURTH SCHEDULE (*Section 34*)

FORM OF NOTICE

NAME OF ESTABLISHMENT _____

In terms of section 34 of the Collective Bargaining Agreement for the Commercial Sectors of Zimbabwe.

(a) the number of ordinary working hours per week for each grade or group of employees is:

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(b) the normal daily times of starting and time of finishing work for each grade or group of employees are:

_____

_____

_____

In terms of section 18 of the Labour Act [*Chapter 28:01*].

(1) On production of a certificate signed by a registered medical practitioner or State Registered Nurse certifying that she is pregnant, a female employee may proceed on maternity leave not earlier than the forty-fifth day and not later than the twenty-first day prior to the expected date of delivery.

(2) The aggregate of leave which an employee may take before and after the birth of her child shall be ninety eight days on full pay.

(3) A female employee shall be entitled to be granted a maximum of three periods of maternity leave with respect to her total service to any one employer during which she shall be paid her full salary.





*Section*

32. Council dues.

33. Exemptions.

34. Meetings.

35. Copy of agreement and notice.

36. Administration.

37. Declaration.

FIRST SCHEDULE: Commercial sectors.

SECOND SCHEDULE: Grading and Wages.

THIRD SCHEDULE: Gratuities.

FOURTH SCHEDULE: Form of Notice.

FIFTH SCHEDULE: Employment Code of Conduct and Grievance Procedures.

*Title and period of operation*

1. (1) This agreement which includes the national employment council for the commercial sectors of Zimbabwe's Employment Code of Conduct and Grievance Procedures may be cited as the commercial sectors of zimbabwe, collective bargaining agreement.

(2) This agreement shall operate from the first day of the month following its registration until further notice.

*Application*

2. (1) This agreement shall apply to—

(a) All employers in the Commercial Sectors; and

(b) All employees in the Commercial Sectors whose occupations are listed in the Second Schedule.

(2) No employer or employee may waive any provision of this Agreement whether or not the said provision creates a benefit to or an obligation on the employer or employee concerned. Each provision shall create a right or obligation as the case may be independently of the existence of other provisions. In the event of any provision of this Agreement being inoperative or ultra vires the powers of the parties or the Act or regulations made thereunder either before or after

registration of this Agreement under the provisions of the Act this shall in no way affect the remainder of the Agreement which shall in that event constitute the Agreement.

*Interpretation*

3. In this agreement:

"accounting officer (CLASS I)" means an employee, who, wholly or substantially, performs, under supervision, accounting operations for his employer, including the preparation of annual balance sheets and similar periodic financial statements for audit and for submission to partners, directors, shareholders or the Commissioner of Taxes;

"accounting officer (CLASS II)" means an employee who, wholly or substantially, supervises, but is not wholly responsible for, the accounting operations of his employer, including the preparation of annual balance sheets and similar periodic financial statements for audit and for submission to partners, directors, shareholders or the Commissioner of Taxes;

"accounting officer (CLASS III)" means an employee who, wholly or substantially, supervises, and is responsible for the accounting operations of his employer including the preparation of annual balance sheets and similar periodic financial statements for audit and for submission to partners, directors, shareholders or the Commissioner of Taxes;

"act" means the Labour Relations Act, [*Chapter 28:01*];

"afternoon off" means the time after 1300 hours on a week-day other than a Saturday, on which an employee in the meat trade is not normally required to work;

"airfield fuelling attendant" means an employee who is engaged in fuelling aircraft and carrying out minor maintenance and servicing of fuelling units, under supervision, keeping equipment clean, assisting in routine daily maintenance of vehicles and assisting in ullaging, connecting and decanting;





**Employees in grade 1(b) are employees who have completed two or more years of continuous service with the same employer as at 1st March, 2023.*

All percentage increases awarded to employees from 1st of December, 2023, may be taken into account when implementing the new percentage on condition that, if the adjustment awarded falls short of the Collective Bargaining Agreement's specified percentage, the affected employees shall receive further increases in the form of the difference between the stipulated percentage increases and the percentage already awarded.

All companies that are currently paying United States Dollars to their employees should continue doing so. Companies must pay a portion of the agreed minimums in USD. The quantum to be determined at company works council level. National Employment Council for the Commercial Sectors is mandated to check compliance with the terms of this agreement including payment of the USD

THIRD SCHEDULE (*Section 31*)

*Gratuities*

| *Length of service* | *Percentage of the monthly wage on termination of employment* |
|---|---|
| Years | % |
| 5 | 5 |
| 6 | 6 |
| 7 | 9 |
| 8 | 11 |
| 9 | 13 |
| 10 | 15 |
| 11 | 16 |
| 12 | 17 |
| 13 | 18 |
| 14 | 19 |
| 15 | 20 |
| 16 | 21 |
| 17 | 22 |
| 18 | 23 |
| 19 | 24 |
| 20 | 25 |
| 21 | 26 |
| 22 | 27 |
| 23 | 28 |
| 24 | 29 |
| 25 | 30 |

Grade 11
Accounting Officer ( Class II)
Computer-programmer
Computer team shift –leader
Grader –precious stones
Jewellery-designer

Grade 12
Accounting officer (class III)
Computer-programme supervisor
Journeyman
Lecturer
Quality Inspector
Teacher

*1st March, 2024 to 31st July, 2024*

PART I

| A<br>Grade | B<br>New Minimums all inclusive<br>(Effective 01-03-24 to 31/07/24 |
|---|---|
| *RTGS equivalent to be paid at the prevailing RBZ prevailing rate. | |
| 1(a) | USD295,00 |
| *(b) | USD305,00 |
| 2 | USD313,00 |
| 3 | USD325,00 |
| 4 | USD335,00 |
| 5 | USD347,00 |
| 6 | USD356,00 |
| 7 | USD367,00 |
| 8 | USD387,00 |
| 9 | USD420,00 |
| 10 | USD449,00 |
| 11 | USD480,00 |
| 12 | USD 543,00 |





"alteration hand" means an employee who is engaged in altering or repairing any article of wearing apparel but does not include a sewing machinist, shoe repairer or milliner;

"assembler" means an employee, other than a bicycle-assembler or a bicycle-assembler supervisor , who is engaged in assembling mechanical or electrical devices or appliances, or any other articles or component part thereof, in whole or part, from ready-made parts for the purpose of a sale, where no technical skill or knowledge is required; or an employee who cleans and assembles all components of articles of adornment, other than those of base or precious metals, semi-precious or precious stones and pearls;

"assembler – jewellery" means an employee who assembles completed component parts, and includes soldering operations thereto;

"assembler—jewellery filing" means an employee who files rough castings, stampings and hand-made parts to a semi-finished state and assembles them;

"bicycle" without in any way limiting its ordinary meaning, includes a tricycle and a delivery tricar and also includes a perambulator a go-cart, a scooter, an express wagon, a pedal-car and any other similar wheeled vehicle propelled by hand or by foot.

"bicycle—assembler" means an employee engaged in performing, under general supervision, any of the duties of assembling bicycles from semi-knocked-down units or any component parts thereof, in whole or in part, from ready-made parts, other than truing of bicycle wheels, the final adjustment of precision bearings, chains or built-up wheels or the setting and tightening of spokes;

"bicycle-assembler supervisor" means an employee engaged in supervising the operations of a bicycle-assembler, or who carries out either or both of the following operations;

(a) truing bicycle-wheels or making final adjustments to an assembled bicycle;

(b) adjusting precision bearings, chains or built-up wheels, or setting and tightening spokes;

"bicycle repairer" means an employee who is employed to repair and maintain the bicycles of security guards employed by his employer, but does not include a security guard.

"bitumen-blender" means an employee who is engaged in bitumen blending and decanting bitumen into packages, as instructed;

"black and white photographic enlarger and processor" means an employee engaged on one or more of the following operations;

(a) making photographic enlargements and all operations incidental thereto;

(b) developing, washing and fixing of enlarged prints;

"black and white photographic film printer and pocessor" means an employee engaged on one or more of the following operations—

(a) developing film;

(b) washing and fixing film;

(c) making contact prints;

(d) operating automatic "jumbo" enlarger;

"blockman butchery supervisor (Class 1)" means an employee who is responsible for dealing directly with all sections of the public and who is responsible for the supervision of employees;

"blockman butchery supervisor (Class II)" means an employee who cuts and sells meat or is actively responsible for the manufacture of small goods and who works without supervision and is responsible for the supervision of employees;

"blockman butchery supervisor (Class III)" means an employee who carries out the duties of a blockman and is placed in charge of a butchery and blockman butchery supervisor (CLASS II) and is responsible for the supervision of employees;





GRADE 8

Blockman butchery supervisor (Class I)
Bulk checker
Buyer
Clerical Supervisor
Commercial Artist (Class I)
Community events operator
Credit Controller
Display Artist (class II)
Drum reconditioning foreman
Film van operator
Gentleman's hairdresser
Ivory carver
Jewellery-cutting machine operator
Ladies' hairdresser or hair-stylist
Servicer (Class I) (LPG)
Supervisor
Typist (shorthand)
Untrained Teacher
Window dresser (Class II)

Grade 9

Blockman butchery supervisor (class II)
Colour photo finishing inspector
Hand engraver precious metals
Ivory engraver
Junior computer-operator
Travel clerk

Grade 10

Accounting officer (Class I)
Blockman butchery supervisor (Class III)
Bookkeeper
Commercial artist (Class II)
Computer-operator
Cutter
Diamond Cutter
Material controller
Senior Travel clerk
Trainee computer-programmer

Cashier
Commercial traveler
Costume Jeweller
Cutter/slabber/shaper cabochonist
Depot yard trainer
Display artist (Class 1)
Dressmaker
Factory Supervisor
Forecourt trainer
Grease manufacturing plant operator
Handyman
Jacket maker (class II)
Marquisite-setter
Milliner
Photographer
Shopkeeper
Spray painter (Class I)
Storeman or warehouseman
Tailor (Class II)
Telephonist
Telex operator
Typist (dictaphone machine)
Window dresser (class 1)

Grade 7
Boat-maintenance hand
Colour printer operator
Faceter/polisher
Office-machine or accounting-machine operator
Pool Vehicle foreman
Repairer/Solder precious metals and stones
Selector-mounter-setter
Senior chief messenger
Senior laboratory hand
Senior Teller
Servicer (Class I)
Spray painter class(Class II
Used oil refining-plant operator





"boat-maintenance hand" means an employee engaged in minor repairs and maintenance of boats;

"boiler attendant" means an employee who attends to a boiler and is responsible for its good running and safe operation and ensure that steam is produced by the boiler as required;

"bookkeeper" means an employee who is wholly or substantially engaged in recording any aspect of financial transactions in the books of the employer or the clients of his employer, up to and including trial-balance stage;

"brake-fluid-blender" means an employee who, under the direct supervision of the production manager, is in charge of the daily routine to ensure the correct blending of proper ingredients and the correct sampling of each batch and is engaged in the recording of batch numbers and details for laboratory testing approval by the Standards Association of Zimbabwe before containers are filled with the finished product and dispatched, and who is responsible for the general control of raw material stock-levels;

"brake–fluid–blender assistant" means an employee who follows routine instruction required for the blending of brake-fluids and for filling containers with brake-fluids to their required mass, under supervision, who is responsible for carrying out cleanliness checks of empty containers, closures and cartons as required by the Standards Association of Zimbabwe, and who keeps accurate records;

"bulk-checker" means an employee who is engaged in filling and dip-checking bulk vehicles as instructed recording quantities, checking vehicles—closures and sealing, carrying out flashings and drainings and transfers of products, as directed, taking colour—samples and carrying out aviation quality—control checks, as directed;

"bulk-loading hand" means an employee who is engaged in assisting with connecting and disconnecting hoses, operating valves and pumps, sealing meter-outlets, sampling and draining lorries;

"button-hole hand" means an employee mainly engaged in making button holes and hand-stitching on bespoke garments;

"buyer" means an employee whose duties are, wholly or substantially, to select and purchase in bulk for stock and for resale merchandise on behalf of his employer, and who stipulates the original retail price;

"calendar month" means the period commencing on the first day of a month and ending on the last day of that month;

"canning-plant hand" means an employee who is engaged in operating a canning–machine;

"canteen supervisor" means an employee who supervises the canteen staff and the distribution and collection of all foods, and may also be responsible for preparing menus and ordering foods;

"canvasser" means an employee who seeks the custom of any person on behalf of his employer in the dry-cleaning and laundry industry;

"car-attendant" means an employee who is engaged in cleaning and guarding cars and generally assisting with unskilled jobs, as directed;

"carcass cutter (meat trade)" means an employee who using a saw cuts all types of meat into small pieces ready for sale;

"caretaker" means an employee charged by his employer with the care and security of premises, plant, equipment and property, but excluding maintenance and repairs;

"carpet-fitter/cutter" means an employee who is wholly or substantially engaged in cutting and fitting carpeting and who binds or sews the edges where cut;

"cash collector" means an employee who, in addition to being a light vehicle driver, is usually employed in collection, under supervision, of debts;

"Cashier" means an employee who is responsible, wholly or substantially, for receiving cash on behalf of his employer and for issuing receipts thereof, but does not





Lottery ticket writer
Magnetic tape encoder operator
Picture frame maker (class II)
Punch-card machine operator or verifier
Racket stringer
Receptionist
Self service till point operator (Class 1)
Shampooist
Shop Salesman (Class II)
Tailor's assistant
Ticket writer (Class I)
Trimmer
Trousers maker (Class I)

Grade 5

Clerk
Corporal
Counter-hand
Crane driver
Electroplater
Grader-semi precious stones
Jacket maker (Class I)
Jewellery polisher-final
Lost–wax process operator
Machine operator
Moulder
Orderman
Packer and dispatch clerk
Pest Control operator (II)
Self-service till operator
Shop salesman (Class III)
Tailor (Class I)
Teller
Ticket writer (class II)
Typist

Grade 6

Black and white photographer, enlarger and processor
Canteen Supervisor

Chief airfield-fuelling attendant
Commissionaire
Depot charge hand
Depot supervisor
Driver (class II)
Drum filler (Class I)
Dry cleaning and washing machine operator
Film projector operator
Foreman of labourers
Grease –maker 's assistant
Groom(Class III)
Housing Supervisor
Laboratory Hand
Office machine controller
Oil blender
Package checker
Pest Control Operator I
Photographic preparation and finishing operator
Picture frame maker (Class I)
Polisher-cabochons
Senior Waiter
Servicer
Shopman

Grade 4
Alteration hand
Ambulance Assistant
Black and White photographic film printer and presser
Chief messenger
Collecting agent
Colour processor operator
Data capture operative
Driver (Class III)
Drum-repairer
Grader-ornamental stones
Hand press operator
Head waiter
Ivory -Shaper
Junior Clerk
Junior teller





include a cash-register operator or a self-service till-point operator;

"casual employee" means an employee who is engaged by an employer for not more than a total of six weeks in any four *successive* calendar months;

"checker" means an employee who checks customers' goods into and out of a factory against an invoice to ascertain its correctness;

"chief airfield fuelling attendant" means an employee who is engaged in working alongside and, at the same time, generally supervising airfield fuelling attendants, carrying out water-checks and issuing products to requisition;

"chief messenger" means an employee who, in addition to performing the work of a senior messenger, is engaged in generally supervising the activities of at least ten messengers;

"clerical supervisor" means an employee who supervises the work of other clerks and whose duties may include costing, indenting and stock control;

"clerk" means an employee other than a junior clerk engaged mainly in office work, such as writing, filing or any other clerical work or in using an adding machine, or who is substantially engaged in routine posting from a book or source of original entry into a ledger, and whose duties may include the operating of a telephone appliance and who has had more than two years of experience in this occupation.

"coat-hanger maker" means an employee engaged in the making of coat-hangers by machine or hand;

"collecting–agent" means an employee wholly or substantially engaged in calling on individuals or householders to collect instalment payments or outstanding accounts on behalf of his employer, and who may introduce potential customers to his employer, but who may not finalise a sale;

"colour photo-finishing inspector" means an employee engaged in the examination of colour prints prior to chopping operations, to determine whether such prints reach an established quality standard, and who inspects finished prints and indicates printing corrections, if any are needed;

"colour-printer operator" means an employee engaged in operating a colour-printer and who judges the negative density, makes corresponding exposure corrections and can recognise all standard negative sizes, and who operates the controls of the colour-printer to provide paper – advance and lens combinations;

"colour-processor operator" means an employee engaged in operating a colour processing-machine;

"commercial artist (Class I)" means an employee who is wholly or mainly engaged, under supervision, in planning, designing and creating art work for commercial use and who may, in addition, produce the finished article for use in connection with advertising and/or commercial display, but does not include a ticket-writer;

"commercial artist (Class II)" means an employee who is wholly or mainly engaged in planning, designing and creating art work for commercial use and who may, in addition, produce the finished article for use in connection with advertising and/or commercial display, but does not include a ticket-writer;

"commercial cleaning" means the services rendered for reward by an employer and his employees who are associated for the purpose of cleaning premises, but does not include the cleaning of premises by employees of the owner or lessee of such premises, or of the agent of such owner or lessee;

"commercial sectors of zimbabwe" means those jobs or occupations listed in First Schedule;

"commercial traveller", means an employee, other than a collecting agent, pavement canvasser, order-man, or hawker, who is a travelling representative of an





Refining-plant assistant

Refining plant hand

Repairer/solder non precious metals and stones

Rough polisher-jewellery (excluding final polishing)

Scaleman

Senior bulk-loading hand

Senior cleaner

Servicing hand

Sewing and repairing hand

Sewing machinist

Shelf-packer (Class 1)

Shoe-repairer

Shop salesman (Class 1)

Sorter-tumbled gemstone

Spotter

Stall attendant

Store hand

Storeman's or warehouseman's assistant

Ticket-issuer

Tracer

Trainee fork- lift operator

Used-oil checker

Waiter

Waste oil grader

Watchman

Grade 3

Assembler- jewellery
Assembler-jewellery filing
Bicycle –assembler (supervisor)
Bitumen blender
Brake fluid blender
Canvasser
Cash collector

Drum filler (Class 11)

Drum plant hand

Drum-plant machine operator

Dry cleaning packer

Electroplater's assistant

Filing clerk

Film Repairer

Film Van Assistant

Fork-lift operator

Gate-keeper

Grease maker's hand

Grease plant assistant

Groom (class II)

Hand engraver-non precious metals

Hand ironer

Invoice clerk

Laundryman

Lorry-guard

Machine-operator (excluding dry cleaning and washing machine operator)

Marker

Meat trade employees engaged in one or more of the following operations or occupations—

making mince- meat, sausages, polonies, cooked, smoke , cured and salted beef or rolled beef, pumping meat

Merchandiser

Messenger

Order Assembler

Packing and dispatch assistant

Paster

Pavement canvasser

Presser

Pump-house hand





establishment and who is wholly or substantially engaged in inviting, canvassing or soliciting orders, mainly from business establishments and who may collect money for his or her employer;

"commercial traveller's assistant" means an employee who accompanies a commercial traveler on his or her rounds and assists him or her to pack, unpack or display his or her samples;

"commissionaire" means an employee who directs visitors to buildings and records the times of their entries and exists therefrom;

"commission-worker" means an employee whose earnings are partly based on the quantity or value of goods sold by him or her or services rendered by him or her on behalf of his employer;

"community events assistant" means an employee who assists in the erecting and operation of demonstration and exhibition equipment, under supervision, keeps vehicles clean and assists in daily servicing;

"community events operator" means an employee who is in charge of a touring-van visiting shows and exhibitions and who is responsible for erecting the pavilion and public-address system, operating the film equipment and record – player and maintaining records of attendance, and who is responsible for the daily attention to vehicles normally carried out by a driver, including maintenance of vehicle log books;

"computer-operator" means an employee who activates and feeds a computer and who has had not less than one year of service as a junior computer-operator;

"computer-programmer" means an employee who writes instructions to instruct the computer and who has had not less than one year of service as a trainee computer –programmer;

"computer-programmer supervisor" means an employee who is placed in charge of one or more computer-programmers and who may perform the duties of a computer programmer;

"computer team/shift-leader" means an employee who is placed in charge of a team or shift of computer operators and who may perform the duties of a computer-operator;

"continuous service" means the total period of unbroken service of an employee with the same employer, as prescribed in section 25;

"contract worker" means an employee who is engaged for a specific period, tasks or project and whose employment shall be for a period in excess of six week;

"cook" means a person employed in an unlicensed restaurant, café, fish-and-chip shop, canteen, tea-room, or refreshment shop in the preparation and cooking of meals, such as simple forms of grills, fried fish, curry, hamburgers, eggs and farinaceous dishes, sandwiches and the like;

"costume jeweller" means an employee who manufactures and assembles or repairs costume jewellery;

"council" means the National Employment Council for the Commercial Sectors of Zimbabwe.

"counter-hand" means an employee who is required to cut and make up orders for the lower-priced cuts of meat, who deals directly with the public, is capable of operating a scale, and who is responsible for cash taking;

"crane-driver" means an employee who drives an electric over-head travelling crane from the floor, where pendants are mounted, on cross-travel carriage and in close proximity to the hook, and where more than two controls are involved;

"credit controller" means an employee who is ultimately responsible for the granting of credit facilities and the collection of outstanding debts;

"Cutter" means an employee who has completed a recognized apprenticeship in designing and cutting bespoke garments, including the fitting and trimming of canvas ad lining, and who is responsible for all supervision and fitting of garments;





Intinerant buyer of used bottles

Intinerant vendor

Ladies hair straightener

Lost – wax presser operator

Newspaper and periodical roundsman

Newspaper vendor

Oiler and belt repairer

Shaver

Shoe repairer (learner)

Stone-wax-sticker

Grade 2

Airfield fueling attendant

Assember

Bicycle-assembler

Bicycle repairer

Boiler Attendant

Brake fluid blender's assistant

Button hole hand

Canning plant hand

Canteen worker

Carcass- cutter( meat trade)

Castor of soft metals ( excluding precious metals)

Caretaker

Carpet fitter/ cutter

Checker

Commercial traveller's assistant

Community events assistant

Cook

Depot assistant

Dispatch clerk's assistant

Driver (Class 1)

(a) operations of religious organizations, including religious bodies propagating social work and missions;

(b) undertakings of welfare organizations and welfare institutions of all types, including homes for the aged, for children and for handicapped and disabled persons;

(c) the Society for the Prevention of Cruelty to Animals;

(d) the Red Cross and St John's Ambulance Associations;

(e) social and Community services not elsewhere classified;

surveying, including land and quantity surveying, topographical surveying and aerial surveys;

theatre bookings agents, theatres and cabarets;

tourist, travel and forwarding agencies not involving the use of transport operated by such agencies

typing and duplicating services;

veterinary services including the services of animal hospitals, related research establishments, animal boarding establishments and kennels and the service of farriers;

wholesale and retail trade.

SECOND SCHEDULE (*Sections 2, 3 and 4*)

PART I

GRADING

Classification of occupation in grades

Grade 1
Assembler

Bulk Loading Hand

Car-attendant

Coat-hanger maker

Drum grader

General Labourer

Groom (Class 1)

Hair-clipper





"data capture operative" means an employee who feeds or punches information into a computer;

"day-off" or "days-off" means, in the case of—

(a) an employee working six days per week, Sunday or that day in the week in lieu of Sunday on which the employee is not normally required to work;

(b) an employee working five days per week, Saturday and Sunday, or those days in the week in lieu of Saturday and Sunday, on which the employee is not normally required to work;

Provided however, that where an employee is normally required to work a six-day week but his employer elects to allow him to work a five-day week while still paying him for the six-day week, the sixth day shall not be considered as a day off;

"day shift" means a shift which is not a night shift;

"depot assistant" means an employee who performs the duties of depot supervisor but is under the direct supervision of a depot supervisor or his or her employer;

"depot charge-hand" means an employee who is engaged in working alongside and, at the same time, controlling the activities of lower grade workers in depot yards, airport yards, packed stores or on pump-houses, tank-cars and main tanks and checking products and operating equipment, under supervision;

"depot supervisor" means an employee who is in charge of a depot, and whose duties include responsibility for receiving goods for processing or documentation, handling cash and general responsibility for the operation of a depot and who is not under the direct and continuous supervision of his or her employer;

"depot yard trainer" means an employee who is engaged in training depot employees;

"Despatch Clerk's Assistant" means an employee who, in the dispatch department or section of an establishment, and under supervision of, and subject to checking by, a

dispatch clerk, receives, assembles, packs and dispatches goods;

"display artist (Class 1)" means an employee which is wholly or mainly engaged, under supervision, in producing, from art work which has been planned, designed or created a commercial artist, finished articles for use in connection with advertising and /or commercial display;

"display artist (Class II)" means an employee who is wholly or mainly engaged in producing, from art work which has been planned, designed or created by a commercial artist, finished articles for use in connection with advertising and/or commercial display;

"Distribution" means the distribution of petrols and/or mineral oils by an importer or manufacturer to retail trade outlets or to bulk customers;

"dressmaker" means an employee who measurers, cuts out, makes up, fits and finishes a garment for a specific customer, to the pattern selected by the customer;

"driver (Class I)" means a driver whose duties require him to posses a motor-cycle or motor scooter driver's licence;

"driver (Class II)" means a driver whose duties require him to possess a light-vehicle driver's licence;

"driver (Class III)" means a driver whose duties require him to possess a heavy-duty driver's licence;

"drum-filler (Class I)" means an employee who, in addition to performing the work of a drum-filler (Class II) is engaged in using meters without ticket – printer heads and filling containers non-automatically;

"drum-filler (Class II)" means an employee who is engaged in filling containers, as instructed by meter with ticket printer head or automatic cut-off, decanting leakers into sound containers, washing, rumbling, inspecting, marking, sealing and numbering drums and recording the number filled;

"drum-grader" means an employee, responsible to the foreman, who is engaged in carrying out final internal





debt collection;
dirt track racing;
dog racing;
employment agencies;
estate agents;
films studios, film making , motion picture distribution and projection at cinemas and other places;
financial institutions excluding commercial banks , merchant bank(accepting houses) and discount houses and, in addition, financial institutions, trusteeships and executorship organizations who are subsidiaries of such companies;
gemstone, jewellery and manufacturing, sales and repairs, gymnasiums, physical culture centres, dancing schools and studios, skating rinks and Turkish baths;
industrial and technical consulting;
market research agencies;
medical aid and mutual benefit societies;
motor, motorcycle and cycle racing;
oil and petrol products- importation and the bulk distribution thereof;
outdoor commercial entertainment, including entertainment at circuses, animal training menageries , zoos and fairs
professional services not covered by an employers' organisation; excluding services provided by firms of registered legal practitioners or architects or chartered secretaries or the medical profession;
professional Sport;
repair and business services not elsewhere classified including importation and exportation of goods and provision by shops and similar establishments of services, including dry cleaning, dyeing, haircutting, hairdressing, manicuring , beauty care, photographic services and repair, film processing , launderette services, watch repairs, fence erectors, scrap dealers, commercial travelers, cleaning services including window cleaning, fumigating and disinfecting;
riding schools , horse racing, race horse training , stable care and work done by jockeys, stable lads and apprentice jockeys;
scientific research;
secretarial services;
shows, holding of, including agricultural, motor, dog, horse, ideal home, industrial, flower, horticultural and other similar shows;
social clubs which do not provide bar and catering facilities;
sports grounds, recreation grounds, parks and gardens-maintenance and management of, including bird sanctuaries, car parks, caravans parks and camp sites, where no catering facilities are provided and horticultural nurseries, but excluding—

*Declaration*

37. The Trade union and the Employers' organisation having arrived at the agreement set forth herein, the undersigned hereby declare that the foregoing is the agreement arrived at, and affix their signatures hereto

Signed at Harare on behalf of the employees on this the . . . . . day of . . . . . 2024.

FIRST SCHEDULE

*The commercial sectors*

The Commercial Sectors shall be comprised of the following sub-sectors:—

(i) retail and wholesale;

(ii) distribution, storage, clearing agents and real estate;

(iii) private professional colleges;

(iv) building societies and microfinances;

(v) gaming and entertainment;

(vi) general commercial sectors not specified in (i) to (vi) above but specified below.

advertising services;
analytical chemistry and laboratory work not elsewhere classified
art galleries, exhibitions (including photographic exhibitions), libraries and museums;
auctioneers, assessors of property;
automobile or motoring associations—provision of services to members;
bookmakers;
building caretaking;
building societies;
business and professional associations excluding associations of professional services provided by firms of registered legal practitioners or architects or chartered secretaries or the medical profession;
clerical services not elsewhere classified;
commercial art;
commercial colleges;
computer services;
consulting and advisory services- engineering, agricultural, geology, geophysics;





visual inspection of drums and who, in addition, grades all drums in accordance with set standards and sprays the interior of the drum with a rust-inhibitor;

"drum-plant hand" means an employee who, in addition to working as a general labourer, is engaged, under supervision, in placing drums in a furnace or on rumbling, steam-cleaning, paraffin and hot-water washing machines, oil-and-water-draining stands as well as in operating de-denting, pressure and light testing, chimin, flanging, lid-gluing and vacuuming machines and who is engaged in de-denting drums with steel or rubber hammers, as directed;

"drum-plant machine operator" means an employee who, in addition to performing the work of a drum-plant hand, is engaged in operating lid-cutting, shot-blasting, body-rolling and lid-sealing machines, under supervision;

"drum-reconditioning foreman" means an employee who is in charge of a repetitive production unit and, without continuous supervision, directs employees under his control occasionally works alongside them and supervises the whole process through the unit and maintains discipline, and who is responsible for maintaining and co-ordination daily production, entering production –count in a record book and maintaining quality control of the end product;

"drum-repairer" means an employee who performs down-hand, single-arc welding or brazing or oxy-acetylene, where the function of the operator does not include adjustment to pressure-valves and where the components to be welded are positively positioned in a jig and the thickness of the material does not exceed five millimeters;

"dry cleaning packer" means an employee employed for the purpose of folding and wrapping any linen or clothes which have been dry cleaned and are ready to be sent to the depots;

"dry-cleaning and washing machine operator" means an employee who operates a dry-cleaning or washing machine;

"emergency work" means work which must be performed immediately in order to prevent harm to any plant or employees, or plant or employees of a customer or to near-by persons or properties;

"employee" means an employee as defined in the Act who is employed by or working for any employer in the Commercial Sectors of Zimbabwe, who receives or is entitled to receive any remuneration in respect of such employment or works;

"employer" means an employer as defined in the Act, who is engaged in or provides employment for persons in the Commercial Sectors of Zimbabwe;

"establishment" any place in which business under the Commercial Sectors of Zimbabwe is carried out;

"faceter/polisher" means an employee who facets and polishes precious and semi-precious stones;

"factory suervisor" means an employee who is responsible for supervising staff and all work carried out in a dry-cleaning and laundry factory, and who is directly responsible to the factory manager;

"filing clerk" means an employee in an office, who works solely on filing and sorting papers and documents;

"film-projector" means an employee who is engaged in operating a cinema-projector and equipment, without supervision, checking equipment and reporting defects, inspecting and repairing films and recording repairs;

"film-repairer" means an employee who is engaged to inspect and repair motion-picture film after use, and who is required to complete a written report on film inspected and repaired;

"film-van assistant" means an employee who assists in the setting up and operation of film equipment, under supervision, and the inspection and repair of films, and who assists with keeping vehicles clean and with daily servicing;





(2) Applications for exemption in terms of subsection (1) shall be made, in writing, to the Council, giving reasons thereof.

(3) Any such exemption granted may be withdrawn by the Council, at any time, in its sole discretion.

(4) Any employer who has a Performance Appraisal system in place and a wage increase agreement negotiated at Works Council level, may apply to the Negotiating Committee of the Council to be exempted from implementing the stipulated percentage increase on existing employees.

*Meetings*

34. (1) Every employer may at his discretion permit an employee on request by the employment council to attend employment council meetings.

(2) Every employer may at his or her discretion permit an employee on request by the union to attend trade union seminars.

*Copy of agreement and notice*

35. (1) Every employer shall exhibit or make available a copy of this agreement and all amendments thereto in a place easily accessible to every employee.

(2) Every employer shall exhibit a notice, in the form set out in the Fourth Schedule, showing the number of ordinary working hours per week and the normal daily times of starting and times of finishing work in his establishments for each grade or group of his employees.

(3) No person shall alter, deface or remove, or cause to be altered, defaced or removed , the copy of the agreement, save on the instructions of the employer when carrying out his responsibilities under subsections (1) and (2).

*Administration*

36. The Council shall be the body responsible for the administration of this agreement, and may issue expressions of opinion not inconsistent with the provisions for employers and employees.

(2) All employers and employees engaged in the Commercial Sector shall from the date of publication of this Agreement pay dues to the Council and all employers shall deduct from the wage or salary of each of the said employees the appropriate due.

(3) The dues to be paid shall be paid monthly in arrears falling due at the end of the month in which the wage or salary was earned.

(4) The due shall be paid by the employee at the rate of 1% of the employee's monthly wage or salary as at the date of deduction and at the same percentage thereafter at the end of each succeeding month:

Provided that—

(a) no employee shall pay more than $7.31 per month;

(b) no dues shall be payable where owing to short time working or any other cause an employee's pay is reduced below sixty per centum of his normal wage or salary;

(c) no deductions shall be made in respect of an employee who is off work sick for a period in excess of 30 days and not in receipt of sick leave pay or a substitute payment;

(d) deductions shall be made in advance from the leave pay paid to an employee prior to his commencing his leave.

(5) The dues to be paid by each employer each month shall be that amount which equals the total of the deductions made in terms of subsection (3) of this section and shall not exceed $1,50 per month in respect of each individual employee.

(6) Each employer shall forward the total amount of the employee and employer's dues, to be received at the Council's office not later than the fifteenth day of the month following that to which the dues relate.

(7) The provisions of this section shall not apply to casual employees.

*Exemptions*

33. (1) The Council may, in its sole discretion, and upon such terms and conditions as it may determine, grant exemption, in writing, from any of the provisions of this agreement to an employer or an employee.





"film-van operator" means an employee who is in charge of a touring film-van and is engaged in setting up and operating equipment, rewinding, cleaning and repairing films and who is responsible for the daily attention to vehicles normally carried out by a driver, and for maintaining vehicle log books and records of performance;

"Forecourt trainer" means an employee who is engaged in training service- station pump-attendants in customer approach, forecourt service, serving vehicles and other tasks;

"Foreman of labourers" means an employee who is specifically charged by his employer with the supervision of employees engaged as labourers;

"fork-lift driver" means an adult employee engaged in operating a fork-lift and whose duties include the driving of a tow-motor with bogies attached;

"Gate-keeper" means an employee who is engaged in controlling entry to, and exit from, premises during normal working hours ensuring the surrender of matches, receiving parcels and other tasks;

"gemstone, jewellery and ivory manufacturing subsector" means, without in any way limiting the ordinary meaning of the expression, the subsector in which employers and employees are associated together for any of the following purposes:—

(a) the manufacture of jewellery or articles of personal adornment, with or without gemstones, including pendants, ear-rings, brooches, bracelets, necklaces, cuff-links, pins, rings and charms; or

(b) the processing of gemstones or synthetic stones, including grading, selecting, cutting, polishing, blocking tumbling and faceting; or

(c) the mounting or setting of gemstones or synthetic stones as adornment of any article; and

including all operations incidental thereto, and the wholesale distribution of all such products when carried

out in association with the foregoing, processing, mounting or setting where such work is performed by a retail jeweller for the purpose of repairing such products. For the purpose of this definition, the term "gemstone" includes all precious and semi-precious stones, ornamental stones and mineral specimen;

"general labourer" means an employee who performs any of the following functions—

(a) affixing glass, pictures, backs and screw-eyes to pictures, and assembling picture-frames, but does not include a picture-frame maker;

(b) affixing postage stamps on letters, parcels or other articles for posting;

(c) assisting on delivery vehicles;

(d) baling or wrapping articles or goods;

(e) packing articles into containers for display;

(f) folding or enveloping mail;

(g) grading items according to size;

(h) using rubber or other stamps;

(i) carrying, moving stacking or unpacking goods;

(j) mixing previously weighed or otherwise determined ingredients by hand;

(k) opening or closing doors, windows, bales, boxes or other packages;

(l) affixing printed or ready-addressed labels to bottles, bales or other packages;

(m) weighing goods to a set scale or cutting by hand to determine length or mass, under supervision;

(n) sorting empty bags, parcels bottles or containers;

(o) making or serving tea or other similar beverages to employees or to his employer or guests;

(p) loading and unloading vehicles;

(q) marking, stenciling or labeling bottles, bales, boxes or other packages;





(4) Notwithstanding the provisions of this section, an employer may:—

(a) set off against, and deduct from, any amount payable in terms of this section any sum owed to the employer by the employee or by his estate in terms of a civil judgement in favour of the employer and arising out of theft or fraud committed by the employee.

(b) if, before an amount payable in terms of this section has been paid , the employer has:

(i) laid criminal charge of theft or fraud against the employee; or

(ii) caused a civil summons to be issued, claiming from the employee, or his or her estate, a sum alleged to be owed to the employer by reason of theft or fraud committed by the employee;

Withholding payment of the sum specified in the charge or summons, as the case may be, until the charge or claim has been finally determined.

(5) If the Court proceedings arising from a charge or summons referred to in subsection (4) lapse, or if, when the proceedings are finally determined, the employer does not obtain civil judgement for the full sum withheld by him or her in terms of paragraph (b) of that subsection , the employer shall , within three working days thereafter, pay the whole or the balance of that sum, whichever is appropriate, to the employee or his or her estate, as the case may be, together with interest thereon at the rate of six per centum per annum from the date on which the gratuity should otherwise have been paid.

(6) In this section "civil judgment" includes an award of compensation or restitution in terms of Part XIX of the Criminal Procedure and Evidence Act [*Chapter 59*].

*Registration and council dues*

32. (1) Every employer in the sectors at the time of coming into operation of this Agreement shall, within one month of that date, unless it has already been done, notify the Secretary of his or her full name, trading name, postal and physical address and a summary of the activities of the undertaking.

(c) one one-hundred and twenty-five gram pocket of cotton wool; and

(e) one two hundred milliliter bottle of acriflavine solution of the strength one in one thousand.

*Health and safety*

29. (A) Each employer is required to comply with provisions of statutory instrument 68 of 1990 concerning health and safety in the work place.

*Seating accommodation*

30. Every shopkeeper shall provide seating accommodation in his shop for till- operators, cashiers and ticket-writers.

*Gratuities on termination of employment*

31. (1) Subject to the provisions of sub-section (4), an employee who has completed five or more years of continuous service shall, on the termination of such service, irrespective of the circumstances of such termination, be paid a gratuity of not less than the amount derived by multiplying the appropriate percentage of his current monthly wage by the number of completed years of continuous service, as set out in the Third Schedule.

(2) If an employee who has completed five or more years of continuous service dies before receiving a gratuity in terms of sub-section (1), there shall be paid to his or her estate the sum which the employee would have received if his or her contract of employment had terminated on the day of his or her death.

(3) Notwithstanding the provisions of sub-section (1) and (2), if an employee is a member of a pension fund which provides for the employee, or his dependants, to receive an amount in excess of the employee's own contributions together with interest, then the gratuity payable in terms of this sub-section shall be reduced by such excess.

In the event of the benefit due being a pension, or deferred pension, then the value of the pension or deferred pension, shall be compared with the gratuity payable plus the refund of the employee's own contributions with interest and if the pension or deferred pension, is less than the gratuity and refund of contributions, then the difference shall be paid in cash by the employer.





(r) assembling or dismantling containers by hand;

(s) filling bottles or other containers;

(t) cleaning carpets, dusting or polishing premises, windows, furniture; machinery, implements, utensils, bottles, tools or other articles;

(u) sweeping;

(v) operating hoist, goods-lift or passenger lift;

(w) preparing food and liquid prior to cooking;

(x) cleaning and preparing food prior to sale;

(y) applying lime-wash and non-decorative anti-corrosive preservatives;

"gentleman's hairdresser" means an employee who carries out work normally performed by an employee who has completed an apprenticeship in the hairdressing trade in terms of the Manpower, Planning and Development Act, 1984 but does not include a hair-clipper;

"goods or merchandise" includes food, drink meals and refreshments;

"grade" means a grade listed in the Second Schedule;

"grader semi-precious stones" means employee who grade semi-precious stones according to quality;

"grease-maker's assistant" means an employee who is familiar with the operation of grease-making equipment and is engaged in weighing ingredients, charging the kettle and autoclave, carrying out routine sampling and testing and recording the results, directing labour and assisting journeymen in the maintenance of equipment and in performing other duties incidental thereto;

"grease-maker's hand" means an employee who, under constant supervision, is engaged in the handling of raw materials, containers, closures and closing tools, and the cleaning of plant and filters, on a regular basis, and in work of a general nature around the grease-plant;

"grease manufcturing plant operator" means an employee who is responsible to the production shift-supervisor and is engaged in operating its plant and equipment,

assisting a journeyman in the maintenance of such plant and equipment and performing other duties incidental thereto, drawing samples for testing, supervising the procedures of his or her general labourers and assistants and who is familiar with the entire process;

"grease plant assistant" means an employee who carries out routine tasks, adheres to laid down procedures, under supervision, and keeps batch records, temperature – charts and other records;

"groom (Class I)" means an employee who cleans stables and stable yards, caretakes the premises and attends to gardening and the feed and store-rooms, grooms horses, assists in feeding horses, harnesses horses and rides horses to and from exercising;

"groom (II)" means an employee who cleans stables and stable yards, caretakes the premises and attends to gardening and the feed and store-rooms, grooms horses, feeds horses, harnesses horses and rides horses at exercise;

"groom (Challs III)" means an employee who cleans stables and stable yards, caretakes the premises and attends to gardening and the feed and the store-rooms, grooms horses, feeds horses, harnesses horses, rides horses at exercise and supervises grooms (Classes 1 and II) and is capable of shoeing horses;

"hair clipper" means an employee how is wholly or mainly engaged in hair-clipping, using only electrical or mechanical hair clippers;

"hand-ironer" means an employee engaged in the ironing of customers' garments by hand;

"hand-press operator" means an employee who operates a hand-press for the purpose of pressing and stamping parts;

"handyman" means an employee, other than a caretaker or a journeyman, who carries out repairs or renovations of a minor nature to the property of his employer, but who is not required to embark upon or carry out any single





(8) Where an employer in an establishment has instituted a colour scheme in coats and overalls fitting in with the colour scheme of his establishment, he or she shall supply the required overalls and coats to his employees, and shall provide for the laundering of such coats and overalls, at his own expense.

(9) Every employer who requires his or she employees to wear uniforms shall supply free of charge such uniforms to his employees;

(10) If an employee losess any clothing or equipment supplied in terms of this section, he maybe required to refund to the employer the whole or any part of the cost of such lost clothing or equipment and the employer shall make due allowance for fair wear and tear in assessing such cost:

Provided that—

(a) proof of such cost shall be made available to the Council if required; and

(b) the amount of any refund an employee may be required to make shall not be more than fifty per centum of the employee's monthly wage in any one month, except where the contract of employment is terminated.

*Special provisions: uniforms, equipment and protective clothing: private security occupation*

28. Not applicable.

*First aid equipment*

29. Every employer employing more than ten employees in an establishment shall provide first-aid equipment in a dust-proof container readily accessible to all employees in that establishment, which equipment shall comprise not less than:—

(a) six standard dressing B.P.C No 3 (small elastic adhesive wound dressing); and

(b) one standard dressing B.P.C. No. 11 (medium burn-dressing); and

(c) one standard dressing B.P.C. No. 16 (eye-pad with bondage); and

*Record of service*

26. (1) An employee whose services are terminated, for any cause whatsoever, may request a record of service from his or her employer.

(2) The record of service supplied shall specify the period of service and the occupation in which the employee was employed.

*Protective clothing and uniforms*

27. (1) Every employer shall supply, free of charge, a waterproof cape, overcoat or other suitable protective clothing to every employee who, in the course of his or her duties, is habitually exposed to inclement weather, or such protective clothing as is reasonably required for the operation or occupation in which the employee is engaged.

(2) Protective clothing supplied to an employee shall remain the property of the employer if he or she is responsible for mending, washing and otherwise maintaining such clothing.

(3) Protective clothing supplied to an employee shall become his property after three months if he or she is responsible for mending, washing and otherwise maintaining such clothing.

Provided that emblems and insignia provided by the employer to be worn on such clothing shall remain the property of the employer.

(4) Every employer shall supply, free of charge, suitable goggles or face-shields to all employees engaged in operations which expose them to glare or the danger of a foreign body entering the eye.

(5) Where articles of food or drink are manufactured, prepared or handled, the employer shall provide, free of charge, to each employee, and shall maintain in a clean state and good condition, suitable overalls and caps of washable material.

(6) Drivers and other employees engaged in the loading, unloading and delivery of goods on or from commercial vehicles shall be provided with adequate protective clothing.

(7) Employees shall wear or use the protective clothing or appliances supplied to them in terms of this section, and the employer shall take all reasonable steps to ensure that the protective clothing and appliances are worn or used by such employee.





task in an occupation prescribed or a trade designated or deemed to have been designated in terms of the Manpower, Planning and Development Act, 1984;

"head waiter" means a waiter in charge of three or more waiters;

"housing supervisor" means an employee who is responsible for the care of residential property and the area surrounding it, and for the discipline of employees in residential premises owned or rented by an employer but excluding maintenance and repairs;

"industrial holiday" means any day prescribed as a paid holiday in terms of section 21;

"investigator" means an employee who, under supervision of management, checks the work of tracers and attempts to locate defaulting credit customers, and whose duties may include interpreting and, under supervision of management, investigations and interviews in connection with customers' complaints but does not include the collection or receipting of money;

"invoice clerk" means an employee who is responsible for making out invoices before or after meat has been cut;

"itinerant buyer of used bottles" means an employee whose duties are to buy used bottles at a price fixed by his employer, with money supplied by the employer, for processing and resale by the employer;

"itinerant vendor" means an employee engaged in selling at various places;

"ivory carver" means an employee who is engaged in the decorative carving of ivory;

"ivory engraver" means an employee who is engaged in the engraving of patterns of ivory pieces and items;

"ivory shaper" means an employee who is engaged in the shaping of ivory pieces;

"jacket-maker (CLASS I)" means an employee who, under supervision, makes jackets up to the stage of fitting the collar and sleeves, where the cutting of the garment and interlinings has been performed by a cutter;

"jacket-maker (Class II) means an employee who makes a complete jacket, excluding the button-holes, sewing of linings and pressing, where the cutting of the garment, lining and interlinings has been performed by a cutter;

"jewellery cutting machine operator" means an employee who operates a curving machine to engrave patterns and designs on jewellery;

"journeyman" means an employee who performs journeyman's work but does not include a handyman;

"journeyman's work" has the meaning assigned to it in the respective parent industry agreement;

"junior clerk" means an employee other than a clerk engaged mainly in office work, such as writing, filing or any other form of clerical work or in using an adding machine or who is substantially engaged in routine posting from a book or source of original entry into a ledger and whose duties may include the operation of a telephone appliance and who has had less than two years of experience in this occupation;

"junior computer-operator" means an employee who activates and feeds a computer but who has less than one year of serve in his occupation;

"junior teller" means an employee with less than two years' continuous experience as a junior teller, who, in serving the public, is responsible for the opening and closing of accounts, receiving deposits, paying out cash and cheque withdrawals, operating a daily reconcilable cash float and undertaking all duties incidental to the foregoing, including but not restricted to general counter duties, answering queries and the updating and balancing of passbook. Such teller may also be required to operate a computer terminal and or alternatively operate a small service point on his own;

"laboratory hand" means an employee who is engaged in assisting generally in a laboratory carrying out simple tests, under supervision, reporting abnormalities, noting readings, washing glassware and keeping premises clean;





(14) Subject to the provisions of subsection (5), no employer shall give notice of termination of employment whilst the employee is sick or disabled, unless or until such employee has been absent for a continuous period of not less than one hundred and eighty days.

(15) A contract of employment which is for a stipulated period which shall not be less than three months and flexible up to a maximum period of twelve months, shall specify the date of commencement and the date of termination thereof. The fixed term employment contract can be entered into for a maximum of six times and thereafter, an employee is deemed to have become an employee on a contract of employment without limit of time on the day the sixth fixed term employment contract expires.

*Continuous service*

25. (1) Continuous service shall be deemed to be broken only by the death, resignation, retirement or discharge of the employee concerned.

Provided that, an employee who is discharged and re-engaged by the same employer within two months of such discharge shall be deemed not to have broken his continuous service.

(2) If an employee who is absent from work without permission from his employer is allowed to continue his employment within two months of such absence, he or she shall be deemed not to have broken his or she period of continuous service.

(3) If, upon the change of ownership of an establishment, an employee enters the service of the new owner, or continues his employment in the establishment, his service with the previous owner shall be reckoned as service with the new owner, and shall be deemed not to have been broken by such change of employer;

Provided that, if, upon the change of ownership of the establishment, an employee is paid by the previous owner gratuity in terms of section 31 in respect of his service with that owner, the gratuity payable by the owner on the death, resignation, retirement or discharge of such employee may be reduced by the amount of the gratuity paid by the previous owner.

(i) one twenty-second of one month's wages where a five- day week is worked;

(ii) one twenty-sixth of one month's wages where a six day week is worked;

(b) in the case of weekly paid employees—

(i) one-fifth of one week's wages where a five day week is worked;

(ii) one-sixth of one week's wages where a six day week is worked;

for every working day which the employee should serve under notice but does not so serve:

Provided that—

(i) the employer shall be obliged to take all reasonable steps to obtain a replacement for such employee;

(ii) the amount of damages so recoverable shall not exceed such sum as results from multiplying the current rate of wage for such employee by the number of working days between the time of the desertion or wrongful termination of service and the time of engagement of a replacement.

(9) An amount recoverable in terms of subsection (8) may be deducted by the employer from any moneys due to the employee by way of wages, leave-pay or otherwise.

(10) When an employer or employee gives notice of termination of service, a shorter period of notice may be mutually agreed upon, and shall be in writing.

(11) The provisions of subsections (2) to (5) shall not apply to a casual employee.

(12) An employee who has given or received notice to terminate his employment shall not be required to take vacation leave during the period of such notice.

(13) Subject to the provisions of subsection (14) no employer or employee shall give notice of termination of service to run concurrently with sick–leave, vacation leave or military or police service.





"ladies hairdresser (including ladies' hair sylist)" means an employee who carries out work normally performed by an employee who has completed an apprenticeship in the hair-dressing trade in terms of the Manpower, Planning and Development Act (1984) but does not include a ladies' hair-straightener;

"ladies hair straightener" means an employee who straightens, curls, plaits and washes hair, and who may dye hair, using a standard preparation, in establishments other than those where permanent waving is carried cut;

"laundryman" means an employee who washes, irons and mends canteen table cloths and serviettes, drivers', messengers' and cleaners' uniforms and protective clothing;

"leave-pay" means a wage due for the period of paid vacation leave to which an employee is entitled;

"lecturer/teacher" means an employee who has undertaken a recognized teacher's training programme at a Teachers' College or any of the Universities in Zimbabwe or at any teacher training institution outside Zimbabwe whose qualifications are recognized in Zimbabwe and who is employed to teach in a private Commercial College;

"local" means in the definition of "senior travel clerk" and "travel clerk" in the countries of the Republic of South Africa, Namibia, Lesotho, Botswana, Swaziland, Mozambique, Angola, Zimbabwe, Zambia, Malawi, Mauritius and Seychelles;

"lorry guard" means an employee who is attached to a bulk of packed lorry and who assists a driver with loading and unloading, coupling and uncoupling hoses, sampling, draining, cleaning and servicing vehicles and generally assists a driver and guards the vehicle during the driver's absence;

"lost-wax presser operator" means an employee who selects rubber moulds by a Number and presses a wax impression;

"lost-wax process operator" means an employee who makes rubber moulds and controls the wax operation and the satin cast process of casting;

"lottery-ticket writer" means an employee who is engaged exclusively in writing names and addresses on lottery tickets from lists and addressing envelopes for that purpose;

"machine operator" means an employee engaged in the operation of any machine used in the dry cleaning and laundry industry other than a dry-cleaning or washing machine, or an employee who operates automatic or semi automatic machines;

"magnetic-tape encoder operator" means an employee who records data on to a magnetic tape for use in a computer;

"marker" means an employee engaged in the marking of customers' goods with the appropriate name;

"material- controller" means an employee who controls the issue of precious metals and precious stones, and who accounts for the return of the issued material in the form of manufactured articles or the unworked materials;

"medical practitioner" means any person who is legally permitted to practice as a medical practitioner in Zimbabwe;

"merchandiser" means an employee other than a stall attendant employed in or about a shop for the purpose of only demonstrating goods or merchandise, which may include the display of goods and keeping control of stock;

"messenger" means an employee engaged wholly or substantially in any or all of the following duties;

(a) delivery and/or conveying letters, parcels, goods or messages on foot;

(b) or by means of a bicycle, tricycle or similarly propelled vehicle;

(b) collecting cash in the delivery of cash-on-delivery orders;

(c) operating a duplicating machine, an addressing machine or a folding machine and using a franking machine;





ninety consecutive days, and, during the probationary period, the contract shall be terminable on twenty-four hours' notice by either party.

(3) If the probationary period of service is terminated during or at the end of such service, the employee shall be entitled to be paid a wage for the period from the commencement of the probationary period to the termination of service.

(4) If the probationary period of service is not terminated during or at the end of such service, the employee shall be deemed to be a full-time monthly paid or weekly paid employee, as the case may be.

(5) An employer or an employee may terminate the contract of service by giving notice in terms of the contract, but such notice shall be—

(a) three months in the case of a contract without limit of time or a contract for a period exceeding two years;

(b) two months in the case of a contract for a period exceeding one year but less than two years;

(c) one month in the case of a contract for a period exceeding six months but less than one year;

(d) two weeks in the case of a contract for a period of six months or less or in the case of casual work or seasonal work.

Provided that it shall not be necessary for an employee to give such notice where he or she is unable to do so because of some emergency or a compelling necessity.

(6) Where a dispute arises between an employer and an employee as to what constitutes an emergency or a compelling necessity, the dispute shall be referred to the Council.

(7) An employer may discharge his obligations by paying an employee his or her full wage and allowances for, and in place of, the period of notice required to be given in terms of this section.

(8) If an employee deserts or wrongfully terminates his employment without due notice, the employer shall pay such employee for the period during which he duly carried out his or her duties, but the employer may recover from the employee—

(a) in the case of monthly paid employees:

(5) If a part-time employee, whilst at work, claims to be unfit for work, owing to sickness or accident, the employer shall give the employee sufficient time off to enable such employee to be examined by a medical practitioner.

(6) A part-time employee who is absent from work for more than three working days in any one week due to his own illness or accident, whether such sick-leave is paid or unpaid, shall cause a medical certificate to be sent to his employer to indicate the probable duration of his or her absence.

(7) Where no medical practitioner is available, a certificate issued by a State Registered Nurse or a qualified medical orderly or a suitably qualified person employed in a State or Municipal Clinic shall be accepted in place of a medical certificate.

Provided that, where the period of sick-leave exceeds fifteen working days, the employee shall be required to furnish a certificate issued by a medical practitioner.

(8) The employer shall be entitled to terminate the contract of employment upon fulfillment of the provisions of subsection (4).

*Contract and notice*

24. (1) An employer shall inform every employee, in writing, on engagement, of the nature of his or her contract, including—

(a) his or her grade; and

(b) his or her rate of pay and when it will be paid; and

(c) provision for accommodation, if any; and

(d) the period of notice required to terminate the contract of employment; and

(e) the hours of work; and

(f) the details of any allowance; and

(g) vacation leave; and

(h) provision for benefits during sickness.

(2) The first four weeks of every contract of service shall be in a probationary period, unless the employer and employee agree in writing, to such period being of some other duration, not exceeding





"milliner" means an employee who is engaged in shaping and trimming or altering women's or girl's hats, incidental to the sale of such hats;

"month" without in any way derogating from the provisions of paragraph (c) of subsection (6) of section 28 of the interpretation Act [*Chapter 1*], means a period of time from any day in a month to the day of the preceding number or day nearest thereto in the following month;

"mounter" means an employee who prepares stones and fittings which he fixes into metal by a gluing process;

"newspaper and periodical roundsman" means an employee engaged in the daily delivery of newspapers and periodicals to subscribers and includes the voluntary selling of newspapers and periodicals after delivery duties, but does not include the selling of such articles on commission only;

"newspaper-vendor" means an employee engaged in selling newspapers from a fixed point, but does not include the selling of newspapers on commission only;

"night shift" means a shift the majority of hours which fall between six o'clock in the evening and six o'clock in the morning;

"office" means any place in which accountancy, book-keeping, clerkage, correspondence, shorthand or typing is performed and includes a cash-desk;

"office-machine and accounting-machine operator" means an employee who is engaged wholly or substantially in operating an accounting-machine, a comptometer, a book-keeping machine or the like but does not include the operating of a duplicating-machine, an addressing-machine, a folding machine, an adding-machine, a calculating-machine, a cash-register, a punch-card, punch machine or a franking machine;

"office-machine controller" means an employee who is engaged in controlling graphotype, ddressograph and copy-machine, including photographic copying machine, maintaining stocks of materials used and recording reproductions and performing other duties;

"oil-blender" means an employee who is engaged in carrying out product blends, without direct supervision;

"oiler and belt-repairer" means an employee engaged in the oiling and repairing of belts used on line-shift drives of dry-cleaning and laundry machinery;

"order assembler" means an employee who assembles orders;

"orderman" means an employee who is wholly or substantially engaged in calling mainly on Individuals or house-holders to solicit retail orders for goods or merchandise and who may, in addition, perform the duties of a shop salesman or collect money on behalf of his employer;

"ordinary hours" means the hours of work agreed in the contract of service of an employee;

"overtime" means any time worked outside ordinary working hours;

"packer-checker" means an employee who is engaged in issuing products to invoice, stamping invoices, addressing packages and verifying products supplied against invoices;

"parent industry agreement" means—

(a) in respect of the building trades listed in the definition of "designated trade" therein, the agreement published in Statutory Instrument 402 of 1983 as amended or replaced from time to time;

(b) in respect of the mechanical and electrical engineering trades listed in the definition of "journeyman" therein, the agreement published in Rhodesia Government Notice 1134 of 1971, as amended or replaced from time to time;

(c) in respect of the motor trades listed in the definition of "journeyman" therein, the agreement published in Statutory Instrument 107 of 1982, as amended or replaced from time to time;

(d) in respect of the printing trades listed in the definition of "designated trade" therein, the agreement published in Statutory Instrument 234 of 1981, as amended or replaced from time to time;





(2) The provisions of this section shall not apply to casual employees.

(3) For the purposes of this section, "working day" means a day on which a part time employee is required to work.

(4) A part-time employee who is incapacitated by sickness or injury shall be entitled to his current wage and allowances during such incapacity for a period not exceeding, in aggregate, in any one year of service—

(a) fifteen working days in the case of an employee who works a six-day week; or

(b) twelve and a half working days in the case of an employee who works a five day week; or

(c) ten working days in the case of an employee who works a four-day week; or

(d) seven and a half working days in the case of an employee who works a three day week:

Provided that—

(i) he or she is not entitled to any compensation or other payment in respect of such illness or incapacity under the provisions of the Workers' Compensation Act [*Chapter 269*] or the State Service (Disability Benefits) Act [*Chapter 274*] or any similar enactment relating to compensation;

(ii) he produces a medical certificate to justify such absence for any period in excess of three working days;

(iii) not more than ten days' paid sick-leave in any one year of service shall comprise uncertified periods of three days or less;

(iv) such paid sick-leave shall not be cumulative from one year to another;

(v) such sick-leave shall not be considered as vacation leave.

(4) If, during any one year period of service of an employee, the employee has used up the maximum period of sick leave on full pay, an employer shall, at the request of the employee supported by a certificate signed by a registered medical practitioner, grant a further period of up to ninety days' sick leave on half pay where, in the opinion of the registered medical practitioner signing the certificate, it is probable that the employee will be able to resume duty after such further period of sick leave.

(5) An employee shall not be entitled to any additional sickleave in terms of subsection(4):—

(a) if he is entitled, in terms of Workers' Compensation Act [*Chapter 269*] or the State Service (Disability Benefits) Act [*Chapter 274*] or any similar enactment relating to compensation, to any compensation for the incapacity under which he is labouring; or

(b) if his sickness was self-induced or his injury was willfully self-inflicted.

(6) If an employee is absent from work for more than three consecutive days due to his own illness or accident, whether such sick-leave is paid or unpaid, he shall cause a medical certificate to be sent to his employer to indicate the probable duration of his absence.

(7) Where no medical practitioner is available, a certificate issued by a State Registered Nurse or a qualified medical orderly or a suitably qualified person employed in a State or Municipal clinic shall be accepted in place of a medical certificate;

Provided that, where the period of sick leave exceeds fifteen working days, the employee shall be required to furnish a certificate issued by a medical practitioner.

(8) The employer shall be entitled to terminate the contract of employment upon fulfillment of the provisions of subsection (3) and (4).

*Benefits during sicknesses: special provisions*

Part-time employees

23. (1) The provisions of this section shall apply to part-time employees.





(e) provided that, if any agreement specified in this definition expires and is not replaced by a further agreement, any reference to that agreement in this definition shall be construed as being a reference to that agreement as last amended prior to its expiry;

"part-time employee" means an employee who is engaged to undertake regular daily work for periods not exceeding a total of five hours per day, or engaged on a weekly basis of not more than thirty hours per week;

"pavement canvasser" means an employee engaged substantially in attracting possible customers in the vicinity of the place of business of his employer but who does not attempt to finalize a sale;

"pest controll operator I" means an employee who uses a spraying machine in or outside a building to spray chemicals in areas infected with pests for the purpose of eradicating them;

"pest control operator II" means an employee who other than doing the work of Pest Control I is engaged in making an analysis of areas infected with pests and he decides on the type of chemicals to be used for the effective eradication of the pest problem diagnosed;

"photographer" means an employee engaged in taking photographs both at his employer's premises and on outside locations and who is sufficiently competent to operate unsupervised;

"photographic preparation and finishing operator" means an employee engaged in one or more of the following operations—

(a) rough sorting;

(b) receiving;

(c) numbering;

(d) splicing;

(e) projection;

(f) mounting;

(g) slitting;

(h) negative-chopping;

(i) print-chopping;

(j) order match-up;

"picture-frame maker (Class I)" means an employee who cuts pre-moulded wood by means of a miter box or guillotine and who produces cut-out mounts, pastes pictures on backing and cuts glass, and who has less than one year of service in such occupation;

"picture-frame maker (Class II)" means an employee who cuts pre-moulded wood by means of a miter box or guillotine and who produces cut out mounts, pastes pictures on backing and cuts glass; and

who has had one year of service in the category of picture-frame maker (Class I):

"piece-work" means work done under any system by which earnings are calculated wholly on the quantity or output of work done, irrespective of the time spent on such work;

"pool-vehicle foreman" means an employee who is engaged in allocating transport as required, ensuring pool-vehicles are refueled as necessary, advising when routine servicing is due, maintaining log books or distance and daily usage, and generally directing activities of pool car drivers;

"precious metals" means gold, silver palladium and platinum;

"presser" means an employee engaged in the pressing of customers' goods using any appliance or machine other than a hand-iron;

"pump-house hand" means an employee who is engaged in assisting with ullaging and sampling the contents of tank-cars and main tanks and operating tank and pipeline-valves and pump switches;

"punch-card machine operator or verifier" means an employee who is mainly engaged in punching or verifying cards





holiday, and pay him not less than his or her daily wage in respect of the industrial holiday and that other day; or

(b) where an employee consents to work on a public holiday he or she shall be paid not less than twice his or her current remuneration for that day, whether or not that day is one on which he would otherwise have been required to work.

*Benefits during sickness*

22. (1) The provisions of this section shall not apply to casual and part-time employees.

(2) If an employee, whilst at work, claims to be unfit for work, owing to sickness or accident, the employer shall give the employee sufficient time off to enable such an employee to be examined by a medical practitioner.

(3) If an employee is incapacitated by sickness or injury, he or she shall be entitled to receive his current wage and allowances during such incapacity for a period not exceeding ninety-days in aggregate, in any one calendar year of service.

Provided that—

(i) he is not entitled to any compensation or other payment in respect of such sickness or incapacity under the provisions of the Workers' Compensation Act [*Chapter 269*] or the State Service (Disability Benefits Act– [*Chapter 274*] or any similar enactment relating to compensation;

(ii) his sickness was not self-induced or his or her injury was not willfully self-inflicted;

(iii) he produces a medical certificate to justify such absence for any period in excess of three working days;

(iv) not more than ten days' paid sick-leave in any one calendar year shall comprise uncertified periods of three days or less;

(v) such paid sick-leave shall not be cumulative from one year to another;

(vi) such sick leave shall not be considered as vacation leave.

(2) The provisions of this section shall not apply to casual employees.

(3) A part-time employee shall accrue vacation leave at the rate of twelve ordinary working hours for each period of one hundred and ninety-five hours worked.

(4) If the service of a part-time employee, who has completed two periods of one hundred and ninety-five ordinary working hours but less than twelve period of one hundred and ninety-five ordinary working hours, is terminated, he or she shall be paid for vacation leave in terms of subsection 3 for each two periods of one hundred and ninety-five working hours.

(5) Any period of leave taken by a part-time employee, or any additional leave granted by the employer, whether paid or not, or any sick leave taken in terms of section 23, shall not be counted for the purpose of calculating leave.

(6) For the purpose of leave-pay for part-time employees, the pay for one hour shall be calculated in terms of paragraph (c) of section 6.

(7) The provisions of subsections (5), (6), (8), (9), (14) and (15) of section 19 shall apply to part-time employees.

*Industrial holidays*

21. (1) All days declared in terms of the Public Holidays and Prohibition of Business Act [*Chapter 292*] as amended by Act 6 of 1980 as public holidays shall be industrial holidays.

Provided that, where a public holiday is moved to the following Monday because it would otherwise fall on a Sunday, that Sunday shall not be regarded as an industrial holiday for the purposes of this agreement.

(2) Subject to the provisions of subsection (3), every employee shall be granted leave of absence on industrial holidays and shall be paid his normal daily wage for every industrial holiday.

(3) An employer may request an employee to work on an industrial holiday, in which event he shall either—

(a) with the consent of the employee, grant the employee leave of absence on another day instead of the industrial





for use in an automatic tabulating machine;

"quality inspector" means an employee who checks the quality of the finished articles;

"racket stringer" means an employee who strings, repairs and services tennis and/or squash rackets using a machine (in the case of tennis rackets) or by hand (in the case of squash rackets);

"radio operator" means an employee who has undertaken a recognised course in radio communications and who is solely employed to receive and transmit messages via radio apparatus;

"receptionist" means an employee engaged mainly in receiving customers or clients preparatory to such customers or clients being attended to by some other employee or by the employer, or who makes appointments with customers or clients on behalf of some other employee or the employer, and whose duties may include the operating of a telephone appliance;

"refining-plant assistant" means an employee who carries out routine tasks and adheres to laid down procedures, under supervision, and keeps batch-records, temperature-charts and other records;

"refining plant hand" means an employee, who under supervision, carries out routine unskilled work such as sludge-removal, checking tank-levels and other simple daily tasks, as directed;

"region" means an area specified in the Second Schedule to the Labour Relations (General) Regulations,1985, published in Statutory Instrument 368 of 1985;

"same employer" in relation to a particular employer, includes, in the case of the sale of any business, the new owner, management or employer, as the case may be, and, in the case of the death of an employer, the legal representative, heir or legatee of that employer and, in the case of insolvency or liquidation of an employer, the trustee or liquidator, provided that such new owner, management, employer, representative, heir, legatee,

trustee or liquidator, as the case maybe, continues to carry on the business and to employ that employee therein;

"scaleman" means an employee who, under instruction, may cut and make up orders for the Lower-priced cuts of meat;

"selector of precious stones" means an employee, who selects diamonds, rubies, emeralds or sapphires for his employer for the manufacture of jewellery or for wholesale distribution;

"selector/mounter/ setter" means an employee who selects or, additionally or alternatively, mounts precious or semi-precious stones;

"self-service till-point operator (Class I)" means an employee who registers mechanically item by item, the accumulated purchases of a customer in a supermarket-type operation, who receives cash for the goods purchased, who maybe required to pack the merchandise sold, and who has had less than one year of continuous service in such occupation;

"self service till-point operator (Class II)" means an employee who registers mechanically, item by item, the accumulated purchases of a customer in a supermarket-type operation, who receives cash for the goods purchased, who may be required to pack the merchandise sold and who has had one or more years of continuous service in such occupation;

"senior bulk loading hand" means an employee who, in addition to performing the work of a bulk-loading hand, is engaged in high-speed filling of bulk lorries by meter with ticket-printer head or automatic cut-off, instructed by a bulky checker;

"senior chief messenger" means an employee who, in addition to performing the duties of a chief messenger is responsible for operating a franking machine, opening and sorting all incoming mail, receipt and dispatch of all mail from and to depots;





(12) For the purpose of leave-pay, the pay for one day shall be calculated by dividing the employee's current wage by thirty (30).

(13) The leave-pay of an employee shall be calculated on his current wage at the time of proceeding on such leave.

(14) An employee, whose service is terminated for any cause whatsoever, shall be paid the cash equivalent of any leave which he or she has accrued and the amount of such payment shall be based on his current wage.

(15) If an employee is absent from work because of illness or any cause beyond his or her own control, proof of which shall rest on him or her, such period of absence maybe offset against any vacation leave due to the employee:

Provided that, in the event of sickness, the employer and employee shall have first complied with the provisions of section 22.

*Special leave*

(16) Special leave on full pay not exceeding twelve days in a calendar year shall be granted by an employer to an employee—

(a) who is required to be absent from duty on the instructions of a medical practitioner because of contact with an infectious disease;

(b) who is subpoenaed to attend any court in Zimbabwe as a witness;

(c) who is required to attend as a delegate or office-bearer at any meeting of a registered trade union representing employees within the undertaking or industry in which the employee is employed;

(d) who is detained for questioning by the police;

(e) on the death of a spouse, parent, child or legal dependent;

(f) on any justifiable compassionate ground.

*Vacation leave:special provisions:part-time employees*

20. (1) The provisions of this section shall apply to part-time employees.

(5) An employee shall be entitled to proceed on vacation leave within six weeks of his application thereof—

Provided that—

(a) where undue hardship would be caused to the employer, the employee shall be entitled to proceed on vacation leave within nine weeks of his or her application thereof.

(b) where an establishment has an annual shut-down, an employee maybe required to take his or her vacation leave during such shut-down.

(c) an employee engaged in work with a seasonal peak may be required to take his or her vacation leave during the off-season.

(6) An employer shall be entitled, on giving one month's written notice, to require an employee to proceed on his accrued vacation leave, or any portion thereof, at any time convenient to the employer.

(7) An employee who has accumulated vacation leave may, with the consent of his employer, elect to be paid cash in lieu of his or her taking such leave.

(8) An employee proceeding on vacation leave shall, on request, be paid his or her wage up to date, and his or her current wage and allowances for the period of such leave, prior to his or her going on leave.

(9) Any period of leave taken by an employee in terms of this section, or any additional leave granted by the employer, whether paid or not, or any sick- leave taken in terms of section 22, shall not be counted as continuous service for the purpose of calculating such leave.

(10) An employee who becomes ill or is injured during a period of vacation leave may cancel his vacation leave and apply for sick leave.

(11) For the purpose of calculating any period of leave or pay in lieu of leave, a year shall be reckoned from the date on which an employee commences service with an employer.





"senior cleaner" means an employee who performs the work of a cleaner and, in addition, is responsible for the control of keys and checking the observance of a company's security instructions;

"senior laboratory hand" means an employee who performs the work of a laboratory hand and who is responsible for carrying out tests of a repetitive nature, which involve measuring, weighing and reading off, without direct supervision, such tests being in accordance with standard procedures laid down by a person authorized to do so;

"senior messenger" means an employee who, in addition to performing the work of a messenger, is engaged in supervising other messengers, acting as a commissionaire and performing other duties;

"senior teller" means an employee who has had in excess of two years' experience as a junior teller and who, in addition to the duties of a junior teller or a teller, has to supervise and control a small service point with a staff of at least two employees but not more than four employees and who is responsible for conducting business with the public, looking after the office generally and for the safe custody of the cash and securities at his service point;

"senior travel clerk" means an employee, other than a travel clerk, engaged to advise and plan holiday and business travel requirements, both local and overseas , and stop-overs, and to advise on exchange control, hotel bookings and car-hire, and who is able to calculate fares, obtain information and confirm bookings by telex, cablegram or correspondence;

"senior waiter" means an employee who, in addition to performing the duties of a waiter, relieves a head waiter;

"servicer" means an employee who is engaged in assisting a journeyman in stripping, cleaning, overhauling and re-assembling petroleum and oil-dispensing equipment, pumps (electrical or manual) pipelines, plant and aviation dispensing equipment and assisting a journeyman with pump-calibrations, welding, brazing or soldering and travelling with a journeyman, if required to do so;

"servicer (Class I) means an employee who, in addition to performing the duties of a servicer, carries out his duties without supervision;

"servicer (Class II) (LPG) means an employee who, in addition to performing the duties of a servicer, (Class I), is also responsible for receiving and dispatching bulk LPG and carrying out minor repairs to LPG filling equipment;

"servicing hand" means an employee who is engaged in assisting a journeyman in dismantling, stripping, cleaning and assembling plant, pumps or vehicle parts;

"sewing and repairing hand" means an employee engaged in sewing and repairing all types of second hand clothes on a sewing machine or by hand;

"sewing-machinist" means an employee who is engaged in making up napery and/or simple garments on a sewing machine, from the piece, for retail sale in the establishment of his employer;

"shampooist" means an employee who brushes hair before shampooing, shampoos and neutralizes a permanent wave, and who may, in addition, use hair dryers, place and remove hair nets, assist ladies hair dressers by handing up and removing curlers and rollers, and clean tools and equipment, but does not include a ladies' hairdresser or a ladies' hair-straightener;

"shaver" means an employee who uses an electric shaver or a depilatory cream to shave customers, and who, in addition, may perform the function of a general labourer;

"shelf-packer" means an employee who is principally employed to mark prices, pack and arrange items on shelves;

"shoe-repairer" means an employee who has served two years of learnership, and who is engaged in repairing boots or shoes, or leather, plastic, rubber or canvas goods;

"shoe-repairer cleaner" means an employee engaged to learn shoe-repairing, under the supervision of a shoe-repairer, for a period of not more than two years;





(iii) where accommodation is provided an amount of six United States dollars (USD6,00) per day.

(2) Where transport is required to convey an employee referred to in subsection (1), the form of transport to be used shall be mutually agreed upon by the employer and the employee, and payment shall be as follows:

(a) where public transport is used, an employee shall be paid the cost of such transport; and

(b) where an employee uses his or her own vehicle he or she shall be paid a rate per kilometer which shall be mutually agreed upon.

Provided that an employee travelling outside his or she ordinary hours of work shall not be paid for such time spent in travelling, unless mutually agreed upon between such employee and his or her employer.

*Vacation leave*

19. (1) The provisions of this section shall not apply—

(a) to casual employees; and

(b) subject to the provisions of subsection (7) of section 20, to part-time employees

(2) If the services of an employee who has completed two months of continuous service is terminated, for any cause whatsoever he shall be paid two and a half days' pay for each month of such service.

(3) An employee shall accumulate vacation leave at the rate of two and half days for each month of continuous service subject to a maximum accrual of ninety days' paid leave. No employer shall deny an employee to proceed on vacation leave after the employee has accrued the maximum ninety days.

Provided that no employee shall be entitled to take vacation leave in his first year of continuous service, unless the employer otherwise agrees.

(4) An employee may take a portion of any vacation leave accrued to him, and shall retain his right to any vacation leave accrued but not taken.

(3) Every part-time airfield fuelling attendant shall be granted leave of absence on industrial holidays, and shall be paid in accordance with subsection (4).

(4) For the purpose of sections 20 and 23 and sub-section (3), a working day of a part time airfield fuelling attendant shall be deemed to be of six hours' duration.

*Cooked meals*

16. (1) Where an employer supplies meals, he shall display the cost of such meals in a prominent position in the canteen.

(2) An employee who voluntarily accepts such meals may have the cost of such meals deducted from his wage.

*Outside work*

17. No employee, other than a part-time employee or a casual employee, shall solicit, take orders for, undertake or perform any work of a similar capacity to that in which he is normally employed, on his own account or on behalf of any other person or firm, for gain, without the written consent of his employer.

*Subsistence, accommodation and travel allowances*

18. (1) An employee, other than those referred to in sub-section (3), who is required to work more than twenty-five kilometres from his normal place of work, which necessitates his sleeping away from home, shall be paid, in advance, a subsistence allowance approved by the employer in consultation with the employee to provide for—

(a) all necessary proved travelling and subsistence expenses; or

(b) unproved expenses—

(i) where neither accommodation nor food is provided, an amount of ten United States dollars (USD10,00) per day; or

(ii) where food is provided, an amount of six United States (USD6,00) per day; or





"shop" means any building or portion thereof, structure, room, market-stall, tent, booth or vehicle, or any place which is used temporarily or permanently for the sale therein, thereon or therefrom of goods or merchandise, or for the display of samples, and includes a hair-dresser's or barber's saloon, but does not include railway refreshment rooms, passenger-trains or places licensed to sell intoxicating liquor for consumption on the premises, or any premises licenced under any law for the sale or manipulation of unmanufactured tobacco, or a store;

"shopkeeper" means an employee who is placed in charge of a shop situated away from the managerial control point;

"shopman" means an employee who is required to cut and make up all types of meat orders, on instruction, but is not responsible for cash takings;

"shop salesman (Class I)" means an employee, other than a stall-attendant, employed in or about a shop, who is wholly or substantially engaged in attending to customers in an establishment for the purpose of effecting a sale and/or demonstrating goods or merchandise, excluding taking of money and giving of change, and/or issuing sales documents, which may include the display of goods and keeping and controlling stock;

"shop salesman (Class II)" means an employee, other than a stall-attendant, employed in or about a shop, who is wholly or substantially engaged in attending to customers for the purpose of completely effecting a sale and/or demonstrating goods or merchandise, involving the taking of money and the giving change, and/or issuing sale documents which may include the display of goods and keeping and controlling of stock, and who has had less than one year of continuous service in such occupation;

"shop salesman (Class III)" means an employee, other than a stall-attendant, employed in or about a shop, who is wholly or substantially engaged in attending to customers for the purpose of completely effecting a sale and/or demonstrating goods or merchandise, involving the taking of money and the giving of change, and/or issuing

sales documents, which may include the display of goods and the keeping and controlling of stock and who has had one year of continuous service in the category of shop salesman (Class II);

"sorter-tumbled gemstones" means an employee who sorts gemstones into different types of gemstone grounds;

"spotter" means an employee engaged in the removal of stains from customers' goods by hand with the use of chemicals;

"spray painter (Class I)" means an employee who is engaged in cleaning, rubbing down and painting commercial vehicles or pumps with spray gun or brush under supervision, but who is not permitted to undertake finishing coats on vehicles;

"spray painter (Class II)" means an employee, who is engaged in cleaning, rubbing down and painting commercial vehicles or pumps with a spray gun or brush, under supervision, and who is permitted to undertake finishing coats on pumps and vehicles;

"stall-attendant" means an employee who sells only such goods as are permitted to be sold under an aerated water dealer's licence issued under the Shop Licences Act, 1976;

"stock-taking" means the periodical examination and valuation of all stock or goods in a shop or other place of business;

"store" means any building or portion thereof situated on a farm or mining location, which is used temporarily or permanently as a retail trade establishment, but does not include a shop or supermarket;

"store employee" means an employee employed in a store;

"store hand" means an employee who is engaged in working in either packed equipment or oil stores, cleaning the stores and items therein, loading and unloading, stowing and packaging, making boxes and crating, stenciling packages and oil-blending, under direct supervision, and issuing items as instructed;





(h) gross total of ordinary and overtime wage or salary;

(i) deductions (specify);

(j) net wage or salary due;

(k) signature of employee for receipt of wage or salary where it is paid in cash.

*Special provisions: commission-workers*

12. (1) A commission worker shall be paid such commission and on such a basis as maybe agreed with his or her employer in writing.

Provided that, if the commission paid to any commission worker, within normal hours of work in any one month, is less than the minimum wages for his or her grade, or, where applicable, the part-time equivalent thereof, the employer shall pay to such a commission worker, a further amount to bring his or her total remuneration up to at least the appropriate minimum wage or the part-time equivalent thereof.

(2) Except as provided in subsection (1), the provisions of sections 4, 5 and 6 shall not apply to a commission-worker.

(3) For all other purposes of these regulations, a commission-worker shall be deemed to be earning the minimum wage for his or her grade.

*Special provisions: bicycle allowance; private security occupation*

13. Not applicable.

*Special provisions:dog handlers: private security occupation*

14. Not applicable.

*Special provisions:part-time airfield fuelling attendants*

15. (1) Sections 5, 18 and 31 shall not apply to part-time airfield fuelling attendants.

(2) The ordinary hours of work of part-time airfield fuelling attendants shall not exceed thirty hours per week;

Provided that the ordinary hours of work shall not exceed six hours per day, and shall be exhibited in terms of subsection (2) of section 34.

(f) the amount of any other payment, bonus, commission or allowances, irrespective of whether paid to or on behalf of the employee; and

(g) any deductions authorised in terms of section 8; and

(h) the net amount received by the employee.

(4) No employer shall give, and no employee shall accept any consideration other than cash or cheque in payment of a wage.

(5) If an employee considers that payment made to him or her is less than the net amount reflected on the accompanying wage slip, he shall notify his employer at the time when payment is made.

(6) Notwithstanding the provisions of subsection (3), the Council may, on application by an employer, authorise such employer to use some other system of informing his employees of the make-up of their remuneration.

*Piece-work, task-work and work on a ticket system*

10. No employer shall give out, and no employee shall perform, work on—

(a) piece-work basis; or

(b) a task-work basis; or

(c) a ticket system.

*time and wage records*

11. Every employer shall keep a record of all employees showing the following particulars—

(a) name in full and I.D. particulars;

(b) occupation and grade;

(c) number of daily hours worked;

(d) rate of wage or salary;

(e) amount due for ordinary time worked;

(f) hours of overtime worked;

(g) amount due for overtime;





"storesman or warehouseman" means an employee who is in charge of stores, and who is responsible for receiving, storing, packing or unpacking goods in a store or warehouse, and for delivering goods from a store or warehouse to departments for dispatch;

"storemans" or warehouseman's assistant" means an employee who is engaged, under the supervision of a storeman or warehouseman, in receiving, storing, packing or unpacking goods in a store or warehouse, and for delivering goods from a store or warehouse to departments for dispatch.

"supermarket" means a shop or retail trade establishment, or part thereof, where the public physically select their own purchases and transport such purchases to the self-service till-point operator, who controls and totally effects the sale, item by item;

"supervisor" means an employee who is specifically charged with the responsibility for the conduct of sales, the safe custody of stock and the conduct of business with the public within any demarcated section or sections of the premises, or in respect of any specific class or classes of merchandise in the establishment, and who is, in addition, placed in full or partial supervisory control of at least three shop salesman, employed in such section or sections, or in connection with such class or classes of merchandise;

"tailor (Class I )" means an employee who is engaged in cutting out and completing a bespoke garment with the required linings and interlinings, under supervision;

"tailor (Class II)" means an employee who is engaged in cutting out and completing a bespoke garment with the required linings and interlinings, delivering a complete garment;

"tailor's assistant" means an employee engaged in the making up of tailored garments on a sewing-machine or by hand sewing, where all measuring, cutting out, marking-out, pinning and tacking of all materials and linings have previously been carried out by a tailor;

"task-work" means a stated task which is set by an employer for an employee and which has to be completed as a condition of earning a wage;

"telephonist" means an employee who is engaged in the operation of a telephone appliance having more than one line or extension;

"telex operator" means an employee who receives and or transmits message by telex;

"teller" means an employee who carries out the duties of a junior teller but has in excess of two years' experience in that capacity;

"ticket-issuer" means an employee who issues tickets of a pre-determined value in a hair-straightening or hair-clipping salon;

"ticket system" means a system whereby an employee is engaged at a wage calculated by reference to the completion of a ticket of an agreed number of days worked or a record based on the number of days worked;

"ticket-writer (Class I)" means an employee who is wholly or mainly engaged, under supervision, in planning, designing or creating and producing, by free-hand, posters, placards or price-tickets, consisting mainly of alphabetical and/or numerical symbols;

"ticket-writer" (Class II) means an employee who is mainly engaged in planning, designing or creating and producing by free-hand, posters, placards or price-tickets, consisting mainly of alphabetical and/or numerical symbols;

"tracer" means an employee who, acting under instructions of a clerk or a more senior employee, traces and locates debtors, but who is not involved in any clerical work or the collection of money;

"trainee computer programmer" means an employee who writes instructions to instruct the computer and who has had less than one year of service in this occupation;

"trainee fork-lift operator" means an employee engaged for a leanership period of not more than three months;





Provided that the amount of such short-fall shall be proved to the satisfaction of the cashier; or

(l) payment for services and supplementary charges legally levied and for lease of land on which to build a room or a house; or

(m) deductions in terms of subsection (2) of section 16: or

(n) deductions in terms of section 32.

(2) Where an employer makes deductions on behalf of a trade union or other third party, he shall remit such deductions to the trade union or other third party concerned not later than the 15th day of the month following that to which deductions relate.

(3) No employee shall be required to make good any bad cheques cashed, unless such cheques are cashed in violation of posted store rules and/or regulations.

*Payment of wages*

9. (1) Every employer shall pay wages to each employee, weekly, fortnightly or monthly, as the case may be, on or by due date.

(2) Payments for overtime, bonuses and allowances shall be made to each employee, weekly, fortnightly or monthly, as the case may be, within fourteen working days of due date;

Provided that an employee whose contract terminates before his ordinary pay day shall be paid not later than on the next business day after the date of termination of his contract.

(3) All remuneration shall be paid either by crediting an employee's bank, building society or Post Office Savings Bank account or by cheque or in cash, and shall be accompanied by a wage slip showing—

(a) the name and grade of the employee; and

(b) the wage rate; and

(c) the period for which payment is made; and

(d) the total number of hours or days worked; and

(e) the amount of overtime; and

*Deductions*

8. (1) No deduction or set-off of any description shall be made or allowed from any remuneration, other than bonus due to an employee, except—

(a) where an employee is absent from work on days other than paid holidays or vacation leave, a *pro rata* amount of his or hert wage only for the period of such absence; or

(b) by a written stop- order for contributions to holiday, benevolent, provident, pension or sick benefit funds, medical-aid societies, insurance policies, post office savings accounts, building society savings accounts or subscriptions to a trade union; or

(c) by written consent of an employee, for money owing for goods supplied by an employer or for repayment of money lent, including interest thereon, if any, by the employer; or

(d) amounts which the employer is compelled by law or legal process to pay on behalf of an employee; or

(e) any amount in terms of subsection (9) of section 27, or subsection (3) of section 28; or

(f) amounts recovered for payments made in, error or overpayment of wages; or

(g) where a local authority raises a levy on the employer for fuel consumed by an employee housed in a hostel irrespective of whether the levy is raised as a separate item or as an element in a composite rental, an amount not exceeding twenty cents per month; or

(h) where an employer pays for an employee's accommodation, the amount so paid; or

(i) deductions in terms of subsection (8) of subsection 24; or

(j) Any amount deducted or withheld in terms of subsection (4) of section 31; or

(k) in the case of a cashier, with his written consent, an amount equal to any short-fall in money under his or her control, and for which he is required to account to his employer;





"travel clerk" means an employee who has had more than two years of service in the office of a travel agent, and who is engaged in itinerary-planning, hotel bookings, car-hire bookings and providing general local holiday information, and who is engaged in duties connected with exchange control, typing and conducting correspondences;

"trouser-marker" means an employee who makes trousers, under supervision, the cloth having been cut out by a cutter;

"typist" means an employee, other than a typist (shorthand) or a typist (dictating-machine), who is wholly or substantially engaged in operating a typewriting machine and who has attained a speed of thirty-five words per minute;

"typist (dictating machine)" means a typist who is required from time to time to transcribe, on a typewriter, material recorded on a dictating-machine;

"typist (shorthand)" means an employee who is required from time to time to record dictation in a system of shorthand, whether manually or mechanically recorded, and to transcribe such short hand on a typewriter, provided that the minimum speeds attained shall be eighty-five words per minute for typing;

"used-oil checker" means an employee who, under supervision, Is engaged in receiving used-oil, dip-checking contents, checking for quality of used oil by visual inspection, decanting products through a sieve into tanks, and who, by operating pump-switches, pumps used oil from tanks through pipe-line-valves into main storage tanks and is responsible for loading bulk trailers with used oil from storage-tanks as instructed;

"used-oil refining-plant operator" means an employee who is responsible to the production shift-supervisor, and is engaged in operating the plant and equipment, assisting a journeyman in the maintenance of such plant and equipment and performing other duties incidental thereto, drawing samples for testing, supervising the procedures of his labourers and assistants and who is familiar with the entire process;

"wage or salary" means the earnings of an employee but does not include a travelling or subsistence allowance or any payment in respect of overtime, or any bonus or other like benefit;

"waiter" means a person employed in an unlicensed restaurant, café, fish- and- chips shop, canteen, tea-room or refreshment- shop, serving all forms of meals and soft drinks supplied by the establishment and assisting in the necessary cleaning;

"waste- oil grader" means an employee who sorts the incoming waste- oil into various grades, keeps accurate records, marks drums and checks contents for unsuitable or unusable products;

"watchman" means an employee, other than an investigator, security guard, lance corporal, corporal, sergeant, sergeant–major or security officer, employed in the private security occupation, charged by his employer with ensuring the protection and security of his employer's premises;

"week" means seven consecutive days, commencing midnight on any day fixed by the employer;

"window- dresser (Class I) " means an employee who is wholly or mainly engaged, under supervision, in the arrangement of interior, exterior or window displays;

"window-dresser (Class II) " means an employee who is wholly or mainly engaged in the arrangement of interior, exterior or window displays;

"working day" means any day other than a day or days off or a holiday;

*Grading and wages*

4. (1) Subject to the provisions of subsection (2) and (3), an employer shall place each employee in a grade appropriate to his occupation, and shall pay a wage to such employee of at least the minimum amount prescribed in the Second Schedule for the occupation of the employee, and no employee shall accept a wage amounting to less than that amount.





who work a five-day week and by twenty- six in the case of employees who work a six day week;

*Payment of overtime*

7. (1) An employer may request, but shall not require, an employee to work overtime, and shall, whenever possible, give twenty-four hours notice to such employee of such request:

Provided that an employee needed to render emergency work or stock-taking shall not decline such request without a reasonable excuse:

(2) An employee shall—

(a) be paid in terms of subsection (3) for all hours worked on overtime; or

(b) by mutual agreement, be allowed time off by the employer during normal working hours, equivalent to—

(i) one and a half times the amount of time worked in excess of the normal working hours on a working day of the week; or

(ii) double the time worked where the time worked was on a day the employee would normally be off.

(3) Subject to the provisions of section 6, where an employee is entitled to be paid for overtime, he shall be paid in respect of each hour worked—

(a) in excess of normal working hours on a working day of the week, at one and a half times his current hourly wage; or

(b) on a day off or holiday, at double his current hourly wage.

(4) For the purpose of calculating payments in terms of subsection (3) , any period of a quarter of an hour but less than half an hour shall be counted as half an hour, and any period more than half an hour shall be regarded as an hour, but any period less than a quarter of an hour shall be disregarded.

sergeant- major, inspector, security officer employed in the private security occupation, to work for a continuous period or more than five and a half hours without a break of at least one hour for a meal;

Provided that an employee who is required to work continuously for more than five hours shall be given a tea break of not less than ten minutes during the first three hours of work.

(4) No employer shall permit an employee to work for more than six days in any one week;

Provided that where an employee works on a holiday, he shall be paid in accordance with the provisions of paragraph (b) of sub- section (3) of section 7;

(5) No employer shall permit a night shift worker to work for a continuous period of more than five hours without a break of at least fifteen minutes:

Provided that this shall not apply to investigators (private security occupation), security guards, lance-corporals, corporals, sergeants, sergeant-majors, inspectors and security officers.

*Conversion of rates*

(6) For the purpose of converting a weekly, fortnightly or monthly wage to—

(a) the weekly equivalent of a monthly wage, the monthly wage shall be divided by four and one- third; or

(b) the fortnightly equivalent of a weekly wage, the weekly wage shall be multiplied by two; or

(c) the hourly equivalent of a weekly wage, the weekly wage shall be divided by the number of hours ordinarily worked in a week; or

(d) the daily equivalent of a weekly wage, the weekly wage shall be divided by five in the case of employees who work a five-day week and by six in the case of employees who work a six day week; or

(e) the daily equivalent of a monthly wage, the monthly wage shall be dived by twenty- two in the case of employees





The provisions of this subsection shall apply to:—

(a) employees employed in all cities, municipalities or towns;

(b) employees employed in towns which fall under the jurisdiction of a rural district council. The town area shall be deemed, for the purposes of this Agreement, to be that area within five kilometers of the town post-office, provided that if the five kilometers radius extends into any commercial farming area communal land or purchase area land, that area within the said commercial farming area, communal land or purchase area shall be deemed to be covered by paragraph (d ;

(c) employees employed in any area designated by the Council;

(d) employees employed in any area other than those referred to in paragraphs (a), (b) and (c) shall be paid a wage of at least seventy-five per centum of the amount prescribed in the Second Schedule for the occupation of the employee;

provided that the wage shall not be less than the minimum wage prescribed for this class of employee in any current Labour Relations (Specification of Minimum Wage) Notice.

(e) Gokwe, Gutu/Mpandawana and Ruwa Growth Points have been declared designated areas.

(2)(a) A casual employee employed in areas defined in paragraphs (a), (b) and (c) of subsection (1) (i.e. urban areas) shall be paid for each day worked at the rate of one and one-tenth of the minimum wage prescribed for his occupation in the Second Schedule and converted in terms of section 6;

(b) a casual employee employed in areas defined in paragraph (d) of subsection (1) (rural areas) shall be paid for each day worked at the rate of twice the wage prescribed in that paragraph and converted in terms of section 6;

(3) A part-time employee shall be paid, for each hour worked, not less than:

(a) one hundred and ninety- fifth of the minimum monthly wage; or

(b) one forty-fifth of the minimum weekly wage;

prescribed in the Second Schedule for his occupation.

(4) an employee who, at the date of commencement of this agreement, is in receipt of a higher wage for his particular occupation than the wage prescribed in terms of this section shall not, by reason of this agreement, suffer any reduction in his wage.

(5) On promotion to a higher grade, an employee shall be paid:—

(a) not less than the wage which he last received prior to his promotion; or

(b) at least the minimum wage prescribed for such higher grade; whichever is the greater.

(6) An employee who is required to perform work in a lower grade than that in which he is normally employed shall be paid the wage applicable to the grade or work which he normally performs.

(7) An employee who is appointed, in writing, to carry out the full responsibilities of a job in a higher grade than that in which he is normally employed for a period of at least one full working day, shall be paid the minimum wage applicable to such higher grade for each day spent working in that higher grade.

Provided that where an employee acts in a higher grade post which is vacant, this shall not be for a period of more than three months.

(8) An employee who is required and permitted to perform work in occupations listed in more than one grade shall be paid the minimum wage prescribed for the highest grade in which such employee is required and permitted to work;

(9) An employer shall not reduce the wage of an employee for any time not worked if the employee was able and willing to work and was present at his or her, place of work but the employer was unable, or unwilling, to furnish him with work.

(10) Where an operation performed by an employee is not specified in the Second Schedule:—





(a) the employer shall provisionally place the employee in grade; and

(b) the employer or employee shall notify the secretary to the Council; and

(c) the secretary, after consultation with the employers' organisation and the trade union, shall determine an interim classification of the operation, which shall be subject to ratification by the council at its next meeting.

Provided that, if the interim classification by the secretary or the final classification by the council, places the employee in a grade:—

(a) higher than the employee's current grade, he shall be paid not less than the minimum wage, prescribed for such higher grade, with effect from the date on which the classification is determined;

(b) lower than the employee's current grade, it shall be lawful to reduce his or her wage to not less than the minimum wage, prescribed for such lower grade, with effect from the date on which such classification is determined unless the employee refuses to accept the lower grade in which event—

(i) he or she may be given relevant notice of termination of employment and

(ii) during the period of such notice, he or she shall be paid the wage which he was receiving prior to such determination.

*Ordinary hours of work*

5. (1) The ordinary hours of work for investigators, security guards, lance-corporals, sergeants, sergeant-majors, inspectors, security officers employed in the private security occupation shall, with effect from the 1st March, 1991, not exceed forty-eight hours per week and twelve hours in any period of twenty-four hours.

(2) The ordinary hours of work for all other employees shall not exceed forty-five hours per week and nine hours per day.

(3) No employer shall permit an employee, other than an investigator, security guard, lance-corporal, corporal, sergeant,